

AbbVie Inc. v. Annora Pharma Private Limited et al

Plaintiff:	AbbVie Inc.
Defendant:	Annora Pharma Private Limited and Hetero USA, Inc.
Case Number:	1:2026cv00688
Filed:	June 11, 2026
Court:	U.S. District Court for the District of Delaware
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

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Date Filed	Document Text
June 12, 2026	Filing 6 Summons Issued as to Annora Pharma Private Limited on 6/12/2026; Hetero USA, Inc. on 6/12/2026. (Attachments: #1 Summons Issued)(oam)
June 11, 2026	Filing 5 Disclosure Statement pursuant to Rule 7.1: No Parents or Affiliates Listed filed by AbbVie Inc.. (oam)
June 11, 2026	Filing 4 Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 11,186,584 B2; 12,365,689 B2. (oam)
June 11, 2026	Filing 3 Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 04/29/2026. Date of Expiration of Patent: 10/17/2036.Thirty Month Stay Deadline: 10/29/2028. (oam)
June 11, 2026	Filing 2 Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (oam)
June 11, 2026	Filing 1 COMPLAINT with Jury Demand against Annora Pharma Private Limited, Hetero USA, Inc. (Filing fee \$ 405, receipt number ADEDC-4990884) - filed by AbbVie Inc.. (Attachments: #1 Exhibits A-B, #2 Civil Cover Sheet)(oam)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: AbbVie Inc. (Delaware)

Defendant: Annora Pharma Private Limited (India) and Hetero USA, Inc. (Delaware)

Plaintiff's Counsel: [Morris, Nichols, Arsht & Tunnell LLP](#)

Case Identification: [1:26-cv-00688](#), D. Del., 06/11/2026

Venue Allegations: Venue is alleged to be proper as Defendant Hetero USA, Inc. is a Delaware corporation, and Defendant Annora Pharma Private Limited is an alien corporation that may be sued in any judicial district. The complaint further alleges that Defendants have continuous and systematic contacts with Delaware and intend to sell the accused product in the state.

Core Dispute: Plaintiff alleges that Defendants' filing of an Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiff's RINVOQ® LQ oral solution constitutes an act of infringement of two U.S. patents.

Technical Context: The technology relates to Janus kinase (JAK) inhibitors, specifically the compound upadacitinib, used for treating immune-mediated diseases such as psoriatic arthritis and juvenile idiopathic arthritis.

Key Procedural History: This action was initiated under the Hatch-Waxman Act following Defendants' submission of ANDA No. 221524 and a Paragraph IV certification notice letter to AbbVie. The complaint notes a dispute between the parties regarding the terms of confidential access to the ANDA, with AbbVie alleging the terms offered by Annora are unreasonably restrictive.

Case Timeline

Date	Event
2015-10-16	'584 Patent Priority Date
2016-06-20	'689 Patent Priority Date
2021-11-30	'584 Patent Issue Date
2025-07-22	'689 Patent Issue Date
2026-04-28	Annora sends Notice Letter to AbbVie
2026-06-11	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 11,186,584 - "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-N-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof"

Patent Identification: U.S. Patent No. [11,186,584](#), issued November 30, 2021.

The Invention Explained

Problem Addressed: The patent's background section describes challenges in the commercial-scale preparation of the active pharmaceutical ingredient (API) upadacitinib ("Compound 1") '584 Patent, col. 2:6-10 These challenges include finding a solid-state form with acceptable physical properties (e.g., chemical and thermal stability, solubility, hygroscopicity) and developing manufacturing processes that avoid particularly hazardous reagents like diazomethane '584 Patent, col. 2:10-28

The Patented Solution: The patent discloses processes for preparing Compound 1 and various solid-state forms thereof, including crystalline hydrates, anhydrides, and salts, which are asserted to have an acceptable balance of properties for pharmaceutical development '584 Patent, abstract '584 Patent, col. 2:18-23 The invention also describes specific pharmaceutical compositions, such as extended-release tablets, that utilize these solid-state forms to achieve desired release profiles '584 Patent, col. 2:31-50 Figure 1A illustrates a detailed manufacturing process flow for creating an amorphous freebase form of the API via a hydrate intermediate '584 Patent, FIG. 1A

Technical Importance: The development of stable, manufacturable solid-state forms and reliable formulations is a critical step in transforming a promising chemical compound into a viable and commercially successful oral drug product.

Key Claims at a Glance

The complaint does not identify specific claims asserted against Defendants Compl. ¶46 For the purpose of this analysis, representative independent claim 16 is examined.

Independent Claim 16 of the '584 Patent recites:

- A pharmaceutical composition comprising
- a crystalline hydrate of Compound 1
- and a pharmaceutically acceptable carrier,
- wherein the crystalline hydrate is a hemihydrate.

U.S. Patent No. 12,365,689 - "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-N-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof"

Patent Identification: U.S. Patent No. [12,365,689](#), issued July 22, 2025.

The Invention Explained

❑ **Problem Addressed:** The patent's background section notes that while upadacitinib is approved for use in adults, its pharmacokinetics, safety, and efficacy had not been evaluated in pediatric patients, particularly those under 12 years of age or weighing less than 40 kg '689 Patent, col. 2:19-24 The patent highlights the need for safe and effective weight-based dosing regimens for this population '689 Patent, col. 2:21-24

❑ **The Patented Solution:** The patent claims methods for treating juvenile idiopathic arthritis (JIA) in pediatric patients by administering upadacitinib using a stable liquid formulation or solid dosage form, with the dose determined by the patient's body weight category '689 Patent, abstract '689 Patent, col. 9:1-15 The specification describes the clinical study design used to establish these dosing regimens, a schematic of which is provided in Figure 10 '689 Patent, FIG. 10

❑ **Technical Importance:** Establishing safe and effective weight-based dosing regimens for pediatric patients is essential for extending the therapeutic use of a drug to children, who may metabolize drugs differently and require doses adjusted for body size.

Key Claims at a Glance

❑ The complaint does not identify specific claims asserted against Defendants Compl. ¶168 For the purpose of this analysis, representative independent claim 4 is examined.

❑ Independent Claim 4 of the '689 Patent recites:

❑ A method for treating polyarticular course juvenile idiopathic arthritis (pcJIA) in a pediatric patient... comprising administering a therapeutically effective amount of upadacitinib... wherein:

❑ if the pediatric patient has a body weight in a range from about 10 kg to less than about 20 kg, administering upadacitinib twice daily as an oral pharmaceutical solution at a dose of 3 mg each (3 mg BID);

❑ if the pediatric patient has a body weight in a range from about 20 kg to less than about 30 kg, administering upadacitinib twice daily as an oral pharmaceutical solution at a dose of 4 mg each (4 mg BID); and

❑ if the pediatric patient has a body weight of about 30 kg or greater, administering upadacitinib twice daily as an oral pharmaceutical solution at a dose of 6 mg each (6 mg BID), or administering upadacitinib once daily as a tablet at a dose of 15 mg (15 mg QD).

III. The Accused Instrumentality

Product Identification

The accused instrumentality is "Annora's ANDA Product," identified as ANDA No. 221524, which seeks FDA approval to market a generic version of AbbVie's RINVOQ® LQ product Compl. ¶15

Functionality and Market Context

The accused product is a 1 mg/mL oral solution of upadacitinib, the active ingredient in RINVOQ® LQ Compl. ¶1 Compl. ¶7 RINVOQ® LQ is described as a treatment for pediatric patients with active psoriatic arthritis and active polyarticular juvenile idiopathic arthritis Compl. ¶12 The complaint alleges that upon approval, Annora intends to commercially manufacture, market, and sell this generic product throughout the United States Compl. ¶17

IV. Analysis of Infringement Allegations

The complaint alleges infringement of one or more claims of the '584 Patent and '689 Patent but does not identify which specific claims are asserted or provide a claim-by-claim analysis of infringement Compl. ¶¶46, 68 As such, the complaint does not provide sufficient detail for a tabular claim chart analysis. The following points of contention are based on the representative claims selected in Section II.

Identified Points of Contention ('584 Patent):

Evidentiary Question: The primary dispute regarding infringement of a composition claim like claim 16 will be factual and evidentiary. A key question will be whether Annora's process for manufacturing its API results in the specific "crystalline hydrate... [which] is a hemihydrate" claimed in the patent. AbbVie currently lacks access to the confidential portions of Annora's ANDA that would contain this information Compl. ¶40

Identified Points of Contention ('689 Patent):

Induced Infringement Question: Infringement of a method-of-treatment claim like claim 4 would occur by inducement. The central question will be whether the proposed product label for Annora's ANDA Product will instruct or encourage physicians to prescribe the oral solution to pediatric patients for pcJIA according to the weight-based dosing regimens recited in claim 4. This would require analysis of the proposed label submitted with the ANDA.

Scope Question: The claim recites dosing based on body weight ranges such as "about 10 kg to less than about 20 kg." The construction of the term "about" may become a point of contention, raising the question of how much deviation from the specified numerical weight boundaries is permissible while still falling within the claim's scope.

No probative visual evidence provided in complaint.

V. Key Claim Terms for Construction

For the '584 Patent:

The Term: "crystalline hydrate...wherein the crystalline hydrate is a hemihydrate"

Context and Importance: This term is the core of representative composition claim 16. The infringement analysis will depend entirely on whether the API used by Annora meets this specific structural definition. Practitioners may focus on this term because the case could be resolved by determining the exact solid-state form of the API disclosed in Annora's ANDA.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The specification discusses hydrates of Compound 1 generally, which could suggest the term should not be limited to a single specific polymorph unless explicitly claimed as such '584 Patent, col. 16:65-67

Evidence for a Narrower Interpretation: The patent provides detailed characterization data for a specific hemihydrate form, designated "Freebase Hydrate Form C," including its PXRD pattern, thermal analysis, and single-crystal data '584 Patent, FIGS. 3C, 4E, 5C '584 Patent, Table 16-C A party may argue that the term should be construed as being limited to the specifically disclosed and characterized hemihydrate form.

For the '689 Patent:

The Term: "about" (as in "about 10 kg," "about 30 kg")

Context and Importance: This term provides flexibility to the numerical body weight ranges that define the dosing regimens in method claim 4. The extent of this flexibility will be critical in determining whether prescribing instructions on a generic label induce infringement, especially for patients near the boundaries of the weight categories.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The term "about" is used throughout the patent's claims and specification without a precise numerical definition, which may suggest it should be given its ordinary meaning of "approximately" as understood by a person of ordinary skill in the art of pediatric dosing '689 Patent, claim 4

Evidence for a Narrower Interpretation: The patent describes clinical studies with specific cohort definitions and presents pharmacokinetic data corresponding to those cohorts '689 Patent, FIG. 10 '689 Patent, Table 21 A party might argue that "about" should be construed narrowly to encompass only minor variations from the stated weights, consistent with the precision of the underlying clinical data.

VI. Other Allegations

Indirect Infringement: The complaint alleges that upon FDA approval, Annora will actively induce infringement of the patents-in-suit Compl. ¶¶41, 71 For the '689 Patent, the infringement theory would be entirely based on inducement, as the claims cover a method of treatment that would be performed by physicians and patients.

Willful Infringement: The complaint alleges that Annora has "actual and constructive notice" of the patents-in-suit, in part because they are listed in the FDA's Orange Book for RINVOQ® LQ Compl. ¶¶32-33 Compl. ¶¶50, 72 This alleged knowledge of the patents prior to the infringing activity of filing the ANDA may support a claim for willful infringement.

VII. Analyst's Conclusion: Key Questions for the Case

1.An Evidentiary and Definitional Question: A central issue for the '584 Patent will be whether the upadacitinib API used to manufacture Annora's ANDA product is, or is made from, a "crystalline...hemihydrate." The resolution will depend on the contents of Annora's confidential ANDA filing and the court's construction of that claim term.

2.A Label-Driven Inducement Question: For the '689 Patent, the key question is whether the proposed product label for Annora's generic oral solution will instruct or encourage physicians to prescribe it to pediatric patients for pcJIA using the specific weight-based dosing regimens claimed in the patent, which would be the basis for a claim of induced infringement.

3.A Procedural Question: The complaint details a dispute over AbbVie's access to Annora's ANDA filing Compl. ¶¶38-40 How the court resolves this discovery dispute could significantly impact the early trajectory of the case, as access to the ANDA is necessary for AbbVie to develop its specific infringement contentions.

Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 1 of 19 PageID #: 1 IN THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF DELAWARE ABBVIE INC., Plaintiff, v. ANNORA PHARMA PRIVATE LIMITED, and HETERO USA, INC. Defendants.)))))))))) C.A. No. _____ COMPLAINT Plaintiff AbbVie Inc. (“AbbVie”), by its undersigned attorneys, brings this action against Defendants Annora Pharma Private Limited and Hetero USA, Inc. (collectively, “Annora”), and hereby alleges as follows: NATURE OF THE ACTION 1. This is a civil action for patent infringement arising under the patent laws of the United States, 35 U.S.C. § 1, et seq., and in particular under 35 U.S.C. § 271, and the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202. This action arises from Annora’s submission of an Abbreviated New Drug Application (“ANDA”) to the United States Food and Drug Administration (“FDA”) seeking approval to market a generic version of AbbVie’s pharmaceutical product RINVOQ® LQ 1 mg/mL oral solution (“Annora’s ANDA Product” or the “Annora ANDA Product”), prior to the expiration of United States Patent Nos. 11,186,584 (“the ’584 Patent”) and 12,365,689 (“the ’689 Patent”) (collectively, “the Patents-in-Suit”). RINVOQ® LQ RINVOQ® LQ is a ground-breaking oral solution drug for treating pediatric patients two years of age and older with active psoriatic arthritis and patients two years of age and older with active polyarticular juvenile idiopathic arthritis. 2. Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 2 of 19 PageID #: 2 3. Janus kinases (JAKs), including JAK1, JAK2, JAK3 and Tyrosine kinase 2 (Tyk2), are intracellular enzymes that play a pivotal role in signaling pathways arising from cytokine or growth factor-receptor interactions on the cellular membrane to influence cellular processes of hematopoiesis and immune cell function. Within the signaling pathway, JAKs phosphorylate and activate signal transducers and activators of transcription (STATs), which modulate intracellular activity including gene expression. RINVOQ® LQ’s active ingredient, upadacitinib, modulates the signaling pathway at the point of JAKs, preventing the phosphorylation and activation of STATs. Upadacitinib has surprising selectivity for JAK1. 4. AbbVie’s development of RINVOQ® LQ is part of its long legacy of research in immunology and its track record to making life better for patients with immune-mediated diseases. 5. RINVOQ® LQ is currently approved for treatment of (1) pediatric patients 2 years of age and older with active psoriatic arthritis who have had an inadequate response or intolerance to one or more TNF blockers, and (2) patients 2 years of age and older with active polyarticular juvenile idiopathic arthritis who have had an inadequate response or intolerance to one or more TNF blockers. 6. RINVOQ® LQ is an important addition to the treatment landscape for patients with these conditions and provides a treatment option for patients who do not respond well or are intolerant to other therapies. Indeed, RINVOQ® LQ was also the first oral therapy to receive FDA approval for pediatric patients with psoriatic arthritis. RINVOQ® LQ has also received orphan drug exclusivity through April 26, 2031 for treatment of pediatric patients 2 years of age and older with active polyarticular juvenile idiopathic arthritis who have had an inadequate response or intolerance to one or more tumor necrosis factor (TNF) blockers, and for the treatment of pediatric 2 Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 3 of 19 PageID #: 3 patients 2 years of age and older with active psoriatic arthritis who have had an inadequate response or intolerance to one or more TNF blockers. 7. As a result of the inventive work of the AbbVie scientists responsible for its development, RINVOQ® LQ is available in a 1 mg/mL immediate-release twice daily oral solution, which allows for oral dosing to pediatric patients. THE PARTIES 8. Plaintiff AbbVie is a corporation organized and existing under the laws of the State of Delaware, with its corporate headquarters at 1 North Waukegan Road, North Chicago, Illinois 60064. AbbVie is a global research and development-based biopharmaceutical company committed to developing innovative

therapies for some of the world's most complex and critical conditions. AbbVie's mission is to use its expertise, dedicated people, and unique approach to innovation to markedly improve treatments across therapeutic areas. 9. AbbVie is the assignee and owner of the Patents-in-Suit. 10. 11. AbbVie holds NDA No. 218347 for RINVOQ® LQ. On information and belief, Defendant Hetero USA, Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 1035 Centennial Ave, Piscataway, NJ 08854. 12. On information and belief, Defendant Annora Pharma Private Limited is a corporation organized and existing under the laws of India, having a principal place of business at Sy. No. 261, Plot No. 13 to 14, Annaram Village, Gummadidala Mandal, Sangareddy Dist., Telangana State, 502313, India. 13. On information and belief, Hetero USA, Inc. serves as the U.S. agent for Annora Pharma Private Limited. By letter dated April 28, 2026 ("Annora's Notice Letter"), Annora Pharma Private Limited identified Dr. Somaraju Indukuri located in Piscataway, New Jersey, as its U.S. agent and the person authorized to accept service of process for any patent infringement complaint that may result from Annora's Notice Letter. Further, the shipping label associated with Annora's Notice Letter identifies "HETERO" as the return addressee and "1035 CENTENNIAL AVE, PISCATAWAY NJ 08854" as the return address, which, on information and belief, is Hetero USA, Inc.'s principal place of business. On information and belief, Somaraju Indukuri has held the position of Vice President of Regulatory Affairs at and has served as U.S. Agent for Hetero USA, Inc. from October 2016 to the present. 14. On information and belief, Annora Pharma Private Limited and Hetero USA, Inc. collaborate with respect to the development, regulatory approval, marketing, sale, and/or distribution of pharmaceutical products. On further information and belief, Annora Pharma Private Limited and Hetero USA, Inc. are agents of one another and/or operate in concert as integrated parts of the same business group and enter into agreements with each other that are nearer than arm's length. 15. On information and belief, Annora caused ANDA No. 221524 ("Annora's ANDA") to be submitted to FDA and seeks FDA approval of Annora's ANDA. 16. On information and belief, Annora Pharma Private Limited and Hetero USA, Inc. acted collaboratively in the preparation of Annora's ANDA and continue to act collaboratively in pursuing FDA approval of Annora's ANDA and seeking to market the Annora ANDA Product. 17. On information and belief, Annora intends to commercially manufacture, market, offer for sale, and sell the Annora ANDA Product throughout the United States, including in the State of Delaware, in the event FDA approves Annora's ANDA. 18. On information and belief, Annora Pharma Private Limited and Hetero USA, Inc. rely on material assistance from one another to market, distribute, offer for sale, and/or sell generic 4 Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 5 of 19 PageID #: 5 drugs in the U.S. market, including in the State of Delaware. On information and belief, Annora Pharma Private Limited and Hetero USA, Inc. intend to act collaboratively to commercially manufacture, market, distribute, offer for sale, and/or sell Annora's ANDA Product, in the event FDA approves Annora's ANDA. JURISDICTION AND VENUE 19. This is a civil action for patent infringement arising under the patent laws of the United States, including 35 U.S.C. § 271 and 28 U.S.C. §§ 1338(a), 2201, and 2202. 20. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331 and 1338. 21. This Court has personal jurisdiction over Hetero USA, Inc. because, on information and belief, Hetero USA, Inc. is a corporation organized and existing under the laws of Delaware. On information and belief, Hetero USA, Inc. is registered to do business as a domestic corporation in Delaware (File Number 4837317). 22. Additionally, this Court has personal jurisdiction over Annora Pharma Private Limited and Hetero USA, Inc. because, on information and belief, each, inter alia, has

continuous and systematic contacts with the State of Delaware, regularly conducts business in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos, has purposefully availed itself of the privilege of doing business in the State of Delaware, and intends to sell Annora's ANDA Product in the State of Delaware upon approval of Annora's ANDA. 23. On information and belief, Annora is in the business of manufacturing, marketing, importing, distributing, and selling pharmaceutical drug products, including generic drug products, either directly or through subsidiaries, agents, and/or alter egos, which Annora manufactures, distributes, markets, and/or sells throughout the United States and in this judicial district. 5 Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 6 of 19 PageID #: 6 24. On information and belief, Annora is licensed to sell generic and proprietary pharmaceutical products in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos. 25. Annora has committed, or aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to AbbVie, which manufactures and markets RINVOQ® LQ for sale and use throughout the United States, including in this judicial district. On information and belief and as indicated by a letter dated April 28, 2026 sent by Annora to AbbVie pursuant to 21 U.S.C. § 355(j)(2)(B), Annora prepared and filed its ANDA with the intention of seeking to market Annora's ANDA Product nationwide, including within this judicial district. 26. On information and belief, Annora plans to sell the Annora ANDA Product in the State of Delaware, list the Annora ANDA Product on the State of Delaware's prescription drug formulary, and seek Medicaid reimbursements for sales of the Annora ANDA Product in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos. 27. On information and belief, Annora knows and intends that the Annora ANDA Product will be distributed and sold in Delaware and will thereby displace sales of RINVOQ® LQ, causing injury to AbbVie. Annora intends to take advantage of its established channels of distribution in Delaware for the sale of the Annora ANDA Product. 28. Annora Pharma Private Limited and Hetero USA, Inc., have regularly invoked the jurisdiction of the courts of this judicial district by pleading counterclaims in pharmaceutical patent infringement actions in this judicial district, and they have also not contested personal jurisdiction or venue in pharmaceutical patent litigation in this judicial district. See, e.g., *Astellas Pharma Inc.*, 6 Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 7 of 19 PageID #: 7 v. *Cipla Limited et al.*, C.A. No. 24-1333, D.I. 37 (D. Del. Mar. 25, 2025); *AbbVie Inc. et al v. Hetero Labs Limited et al.*, C.A. No. 25-625, D.I. 8 (D. Del. June 11, 2025); *AVEO Pharmaceuticals, Inc. v. Hetero USA Inc. et al.*, C.A. No. 25-639, D.I. 12 (D. Del. Aug. 12, 2025); *Boehringer Ingelheim Pharmaceuticals Inc. et al., v. Lupin Ltd. et al.*, C.A. No. 18-1689, D.I. 97 (D. Del. Sept. 19, 2019); *Merck Sharp & Dohme Corp. v. Annora Pharma Private Limited et al.*, C.A. No. 21-1006, D.I. 13 (D. Del. Oct. 11, 2021); see also, e.g., *Adverio Pharma GmbH et al., v. Changzhou Pharmaceutical Factory et al.*, C.A. No. 25-479, D.I. 21 (D. Del. June 20, 2025); *Amgen Inc. et. al., v. Annora Pharma Private Limited et al.*, C.A. No. 20-122, D.I. 9 (D. Del. Mar. 26, 2020). 29. In the alternative, this Court has personal jurisdiction over Annora Pharma Private Limited because the requirements of Federal Rule of Civil Procedure 4(k)(2)(A) are met as (a) AbbVie's claims arise under federal law; (b) Annora Pharma Private Limited is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Annora Pharma Private Limited has sufficient contacts in the United States as a whole, including, but not limited to, participating in the preparation and submission of Annora's ANDA and/or manufacturing and/or selling pharmaceutical products distributed throughout the United States including in this judicial district, such that this Court's exercise of jurisdiction over Annora Pharma Private Limited satisfies due

process. 30. Venue is proper in this district for Hetero USA, Inc. pursuant to 28 U.S.C. § 1400(b) because, inter alia, Hetero USA, Inc. is a corporation organized and existing under the laws of the State of Delaware. 7 Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 8 of 19 PageID #: 8 31. Venue is proper in this district for Annora Pharma Private Limited pursuant to 28 U.S.C. §§ 1391 and 1400(b) because, inter alia, Annora Pharma Private Limited is a corporation organized and existing under the laws of India and may be sued in any judicial district. THE PATENTS-IN-SUIT 32. The '584 Patent, entitled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," was duly and lawfully issued by the United States Patent and Trademark Office ("USPTO") on November 30, 2021. A true and correct copy of the '584 Patent is attached hereto as Exhibit A. The '584 Patent is listed in the Approved Drug Products with Therapeutic Equivalence Evaluations (an FDA publication commonly known as the "Orange Book") for RINVOQ® LQ 1mg/mL oral solution. 33. The '689 Patent, entitled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," was duly and lawfully issued by the United States Patent and Trademark Office ("USPTO") on July 22, 2025. A true and correct copy of the '689 Patent is attached hereto as Exhibit B. The '689 Patent is listed in the Orange Book for RINVOQ® LQ 1mg/mL oral solution. ANNORA'S ANDA NO. 221524 34. Annora has submitted Annora's ANDA, which seeks approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of a purported generic version of RINVOQ® LQ 1 mg/mL oral solution prior to the expiration of, inter alia, the '584 and '689 Patents. 35. On information and belief, FDA has not approved Annora's ANDA. 8 Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 9 of 19 PageID #: 9 36. Annora sent AbbVie a Notice Letter dated April 28, 2026. Annora's Notice Letter represented that Annora had submitted to FDA ANDA No. 221524 and purported Paragraph IV certifications with respect to the '584 Patent and United States Patent Nos. 9,951,080 (the '080 Patent); 10,981,923 (the "'923 Patent"); 11,661,425 (the "'425 Patent"); 11,680,069 (the "'069 Patent"); 11,718,627 (the "'627 Patent"); 11,773,105 (the "'105 Patent"); and 12,110,298 (the "'298 Patent"), which are all listed in the Orange Book for RINVOQ® LQ. Annora's Notice Letter did not address the '689 Patent and two other patents, United States Patents Nos. 8,926,629 and RE47,221, all of which are listed in the Orange Book for RINVOQ® LQ. 37. According to applicable regulations, Notice Letters such as Annora's must contain a detailed statement of the factual and legal basis for the applicant's opinion that the patent is invalid, unenforceable, or not infringed which includes a claim-by-claim analysis, describing "for each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed" and "for each claim of a patent alleged to be invalid or unenforceable, a full and detailed explanation of the grounds supporting the allegation." See 21 C.F.R. § 314.95(c)(7); see also 21 C.F.R. § 314.52. 38. In Annora's Notice Letter, Annora purported to offer confidential access to portions of its ANDA No. 221524 on terms and conditions set forth in Annora's Notice Letter ("the Annora Offer"). The Annora Offer contained unreasonable restrictions regarding access to its ANDA, well beyond those that would apply under a protective order. For example, the Annora Offer did not permit AbbVie's in-house counsel or scientific experts to access ANDA No. 221524. Additionally, the Annora Offer contained provisions that unreasonably restricted the ability of outside counsel receiving access to ANDA No. 221524 to engage in any patent prosecution for AbbVie or any FDA counseling, litigation, or other work before or involving the FDA. The restrictions the Annora 9 Case 1:26-cv-00688-UNA Document 1 Filed 06/11/26 Page 10 of 19 PageID #: 10 Offer placed on access to ANDA No.

221524 contravene 21 U.S.C. § 355(j)(5)(C)(i)(III), which states that an offer of confidential access “shall contain such restrictions as to persons entitled to access, and on the use and disposition of any information accessed, as would apply had a protective order been entered for the purpose of protecting trade secrets and other confidential business information” (emphasis added). 39. Outside counsel for AbbVie negotiated in good faith with counsel for Annora in an attempt to reach agreement on reasonable terms of confidential access to Annora’s ANDA. In correspondence dated May 13, 2026, outside counsel for AbbVie proposed edits to the Annora Offer consistent with protective orders Annora has entered into in recent Hatch-Waxman litigation, and consistent with the purpose of 21 U.S.C. § 355(j)(5)(C)(i)(III). See, e.g., *Adverio Pharma GmbH et al., v. Changzhou Pharmaceutical Factory et al.*, C.A. No. 1:25-cv-00479-GWB, D.I. 64 (D. Del. Nov. 17, 2025). There, Annora allowed expert and in-house counsel access to its ANDA and permitted outside counsel receiving access to engage in certain proceedings before the USPTO and FDA. See *id.* 40. On May 22, 2026, having received no response from counsel for Annora, outside counsel for AbbVie requested an update, and counsel for Annora then responded that they were still checking with their client. Since then, outside counsel for AbbVie has not heard back from counsel for Annora regarding the conditions of access to Annora’s ANDA. To date, AbbVie has not received access to Annora’s ANDA. 41. On information and belief, if FDA approves Annora’s ANDA, Annora will manufacture, offer for sale, or sell its ANDA Product, within the United States, including within the State of Delaware, or will import its ANDA Product into the United States, including the State of Delaware. On information and belief, the manufacture, use, offer for sale, sale, or importation of Annora’s ANDA Product will directly infringe the ’584 Patent and the ’689 Patent, either

literally or under the doctrine of equivalents, and Annora will actively induce and/or contribute to the infringement of the ’584 Patent and/or the ’689 Patent, either literally or under the doctrine of equivalents.

42.

This action is being brought within forty-five days of AbbVie’s receipt of Annora’s Notice Letter. Accordingly, AbbVie is entitled to a stay of FDA approval pursuant to 21 U.S.C. § 355(j)(5)(B)(iii).

43.

COUNT 1 — INFRINGEMENT OF THE ’584 PATENT BY ANNORA

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

44.

On information and belief, Annora has submitted or caused the submission of Annora’s ANDA to FDA and thereby seeks FDA approval of Annora’s ANDA Product.

45.

AbbVie owns all rights, title, and interest in and to the ’584 Patent.

46.

On information and belief, Annora's ANDA Product and/or the use thereof infringes one or more claims of the '584 Patent.

47.

On information and belief, Annora has infringed one or more claims of the '584 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting Annora's ANDA and thereby seeking FDA approval of a purported generic version of RINVOQ® LQ prior to the expiration of the '584 Patent.

48. On information and belief, if the Annora ANDA is approved, the Annora ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through Annora and its affiliates, directly infringing the '584 Patent.

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On information and belief, importation, manufacture, sale, offer for sale, or use of Annora's ANDA Product by Annora or on its behalf prior to the expiration of the '584 Patent would infringe one or more claims of the '584 Patent under 35 U.S.C. § 271(a), (b), (c), and/or (g).

50.

49. On information and belief, Annora has actual and constructive notice of the '584 Patent and is aware that the submission of Annora's ANDA with the request for FDA approval prior to the expiration of the '584 Patent would constitute an act of infringement of the '584 Patent.

51. On information and belief, AbbVie will be irreparably harmed if Annora is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '584 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and Annora, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

52.

Annora's Notice Letter lacks any sufficient contention that the '584 Patent is invalid, unenforceable, and/or not infringed by Annora. Any assertion by Annora of invalidity, unenforceability, and/or non-infringement with respect to the '584 Patent renders this case

“exceptional” as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys’ fees and such other relief as this Court deems proper.

COUNT 2 — DECLARATORY JUDGMENT OF INFRINGEMENT OF THE ’584
PATENT BY ANNORA

53.

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

54.

AbbVie’s claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

55.

56.

AbbVie owns all rights, title, and interest in and to the ’584 Patent.

On information and belief, Annora’s ANDA Product and/or the use thereof

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infringes one or more claims of the ’584 Patent.

57.

On information and belief, Annora has submitted or caused the submission of the Annora ANDA to FDA and continue to seek FDA approval of the Annora ANDA.

58.

On information and belief, Annora has made, and will continue to make, substantial preparation to import into the United States, and/or to use, offer to sell, and/or sell within the United States the Annora ANDA Product.

59.

On information and belief, if the Annora ANDA is approved, the Annora ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through Annora and its affiliates, directly infringing the ’584 Patent.

60.

On information and belief, Annora has actual and constructive notice of the ’584 Patent and is aware that the manufacture, use, sale, and/or importation of the Annora ANDA

Product prior to the expiration of the '584 Patent will constitute an act of infringement of the '584 Patent.

61.

Unless enjoined by this Court, on information and belief, importation, manufacture, sale, offer for sale, or use of Annora's ANDA Product by Annora or on its behalf prior to the expiration of the '584 Patent would infringe one or more claims of the '584 Patent under 35 U.S.C. § 271(a), (b), (c), and/or (g).

62. As a result of the foregoing facts, there is a real, substantial and continuing justiciable controversy between for the parties hereto as to the infringement of the '584 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

63.

On information and belief, AbbVie will be irreparably harmed if Annora is not

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enjoined from infringing and/or from actively inducing or contributing to the infringement of the '584 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and Annora, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

64.

Annora's Notice Letter lacks any sufficient contention that the '584 Patent is invalid, unenforceable, and/or not infringed by Annora. Any assertion by Annora of invalidity, unenforceability, and/or non-infringement with respect to the '584 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

COUNT 3 — INFRINGEMENT OF THE '689 PATENT BY ANNORA

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs

65.

as if fully set forth herein.

66.

On information and belief, Annora has submitted or caused the submission of Annora's ANDA to FDA and thereby seeks FDA approval of Annora's ANDA Product.

67.

AbbVie owns all rights, title, and interest in and to the '689 Patent.

68.

On information and belief, Annora's ANDA Product and/or the use thereof infringes one or more claims of the '689 Patent.

69.

On information and belief, Annora has infringed one or more claims of the '689 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting Annora's ANDA and thereby seeking FDA approval of a purported generic version of RINVOQ® LQ prior to the expiration of the '689 Patent.

70.

On information and belief, if the Annora ANDA is approved, the Annora ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through Annora and its affiliates, and will then be used in a way that is directly infringing the '689 Patent.

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71.

On information and belief, upon FDA approval of the Annora ANDA, Annora will actively induce and/or contribute to the infringement of one or more claims of the '689 Patent under 35 U.S.C. § 271(b) and/or (c) by actively and intentionally aiding, abetting, encouraging, participating in, and/or inducing others to perform acts of direct infringement with knowledge of the '689 Patent and knowledge that it is encouraging infringement.

72.

On information and belief, Annora has actual and constructive notice of the '689 Patent and is aware that the submission of Annora's ANDA with the request for FDA approval prior to the expiration of the '689 Patent would constitute an act of infringement of the '689 Patent.

73.

On information and belief, AbbVie will be irreparably harmed if Annora is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '689 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and Annora, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

74.

Annora's Notice Letter lacks any contention that the '689 Patent is invalid, unenforceable, and/or not infringed by Annora. Any assertion by Annora of invalidity, unenforceability, and/or non-infringement with respect to the '689 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

COUNT 4 — DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '689
PATENT BY ANNORA

75.

AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

76.

AbbVie's claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

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77.

78.

AbbVie owns all rights, title, and interest in and to the '689 Patent.

On information and belief, Annora's ANDA Product and/or the use thereof infringes one or more claims of the '689 Patent.

79.

On information and belief, Annora has submitted or caused the submission of the Annora ANDA to FDA and continue to seek FDA approval of the Annora ANDA.

80.

On information and belief, Annora has made, and will continue to make, substantial preparation to import into the United States, and/or to use, offer to sell, and/or sell within the United States the Annora ANDA Product.

81.

On information and belief, if the Annora ANDA is approved, the Annora ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through Annora and its affiliates, and will then be used

in a way that is directly infringing the '689 Patent.

82.

Unless enjoined by this Court, on information and belief, upon FDA approval of the Annora ANDA, Annora will actively induce and/or contribute to the infringement of one or more claims of the '689 Patent under 35 U.S.C. § 271(b) and/or (c) by actively and intentionally aiding, abetting, encouraging, participating in, and/or inducing others to perform acts of direct infringement with knowledge of the '689 Patent and knowledge that it is encouraging infringement.

83.

On information and belief, Annora has actual and constructive notice of the '689 Patent and is aware that the manufacture, use, sale, and/or importation of the Annora ANDA Product prior to the expiration of the '689 Patent will constitute an act of infringement of the '689 Patent.

84. As a result of the foregoing facts, there is a real, substantial and continuing

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justiciable controversy between for the parties hereto as to the infringement of the '689 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

85.

On information and belief, AbbVie will be irreparably harmed if Annora is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '689 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and Annora, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

86.

Annora's Notice Letter lacks any contention that the '689 Patent is invalid, unenforceable, and/or not infringed by Annora. Any assertion by Annora of invalidity, unenforceability, and/or non-infringement with respect to the '689 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

REQUEST FOR RELIEF

WHEREFORE, AbbVie respectfully requests the following relief:

(A)

A judgment that Annora has infringed the '584 and '689 Patents under 35 U.S.C. § 271(e)(2)(A);

(B)

A declaratory judgment that under one or more of 35 U.S.C. §§ 271(a), (b), (c), and/or (g), Annora's commercial manufacture, use, offer for sale, or sale in, or importation into the United States of the Annora ANDA Product, or inducing or contributing to such conduct, would constitute infringement of one or more claims of the '584 and '689 Patents;

(C)

A judgment and order, pursuant to 35 U.S.C. § 271(e)(4)(A), that the effective date of any FDA approval of Annora's ANDA shall be no earlier than the last expiration date of any of

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the '584 and '689 Patents, or any later expiration of exclusivity for any of the '584 and '689 Patents, including any extensions or regulatory exclusivities;

(D)

A judgment that making, using, selling, offering to sell, or importing Annora's accused ANDA Product, or inducing or contributing to such conduct, would constitute infringement of the '584 and '689 Patents pursuant to 35 U.S.C. §§ 271 (a), (b), (c), and/or (g);

(E)

Entry of a permanent injunction enjoining Annora, its officers, agents, employees, parents, affiliates, and subsidiaries, and all persons and entities acting in concert with Annora or on its behalf from commercially manufacturing, using, offering for sale, or selling its accused ANDA Product within the United States, or importing its accused ANDA Product into the United States, until the day after the expiration of the '584 and '689 Patents, including any additional exclusivity period applicable to those patents, and from otherwise infringing the claims of the '584 and '689 Patents;

(F)

An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if Annora engages in the commercial manufacture, use, offer for sale, sale, and/or importation of its accused ANDA Product, or any product that infringes the '584 and '689 Patents, or induces or

contributes to such conduct, prior to the expiration of those patents including any additional exclusivity period applicable to those patents;

(G)

A finding that this is an exceptional case, and an award of attorneys' fees in this action pursuant to 35 U.S.C. § 285;

(H)

An award to Plaintiffs of their costs and expenses in this action; and

(I)

Such other and further relief as the Court deems just and proper.

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